

23STLC04895 23STLC04895

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-16

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Case Number: 23STLC04895 Hearing Date: September 16, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Mercury Insurance

Company's Motion to Vacate Dismissal

and Enter Judgment is granted. Judgment is to be entered in Plaintiff's favor and against Defendant Genaro Gutierrez Adame in the amount of \$4,378.12 principal, costs \$403.87, and attorney fees \$1,187.50.

Moving party is to file and serve
a proposed judgment in accordance with this ruling within 20 days.

Analysis:

On August 4, 2023, Plaintiff Mercury Insurance Company ("Plaintiff") filed this subrogation action against Defendant Genaro Gutierrez Adame ("Defendant"). Defendant filed an Answer to the Complaint on February 22, 2024. On September 8, 2025, Plaintiff filed a Stipulation and Order for Dismissal. The Court entered the stipulation and dismissed the action on the same date. (Stip and Order, filed 09/08/25.)

On June 12, 2026, Plaintiff filed and served the instant Motion to Vacate Dismissal and Enter Judgment.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation

stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) "Parties" include "an attorney who represents the party" and an insurer's agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Espinoza Decl., Exh. A, p. 4.)

The settlement obligates

Defendant to pay Plaintiff \$8,079.76, starting with an initial payment of \$1700.82 from Defendant's insurer, followed by monthly payments by Defendant on the remaining \$6378.94 starting on August 15, 2025. (Id. at Exh. 1, p. 4, ¶1.)

The settlement agreement also provided that in the event of Defendant's default, Plaintiff may seek judgment in the amount of \$6,378.94, plus costs of \$244.87 for filing and \$99.00 for service, and costs and fees to execute the judgment, less credit for any payments made. (Ibid.) The insurance company paid \$1700.82 toward the settlement and Defendant paid \$300, after which Defendant defaulted. (Id. at ¶4.) Therefore, Plaintiff is entitled to judgment in the amount of \$6,078.94 principal (\$6,378.94 - \$300), underlying costs of \$403.87 (filing fee of \$244.87, service cost of \$99.00, motion cost of \$60.00), plus attorney fees of \$1,187.50, for a total of \$7,670.31. (Id. at ¶5.)

Conclusion

Plaintiff Mercury Insurance

Company's Motion to Vacate Dismissal

and Enter Judgment is granted. Judgment is to be entered in Plaintiff's

favor and against Defendant Genaro Gutierrez Adame in the amount of \$6,078.94 principal, costs of \$403.87, and attorney fees of \$1,187.50.

Moving party is to file and serve
a proposed judgment in accordance with this ruling within 20 days.

Moving party to give notice.